

EMPLOYMENT AGREEMENT — ABA MODEL (US-ANCHORED, CLEAN BASELINE)

This Employment Agreement (the "Agreement") is entered into between the Company and the Employee as of the Effective Date. The Company is a Delaware corporation with its principal place of business in San Francisco, California. The Employee resides in California. The terms of this Agreement are modelled on the American Bar Association Model Employment Agreement (the "ABA Model") and are intended to comply with California law, including the non-compete restrictions articulated in *Edwards v. Arthur Andersen LLP* (2008) 44 Cal. 4th 937 and the invention assignment carve-outs in California Labor Code section 2870.

1. **Notice Period.** Either Party may terminate this Agreement by giving the other Party not less than thirty (30) days' prior written notice. The notice period shall run from the date of receipt of the written notice. During the notice period, the Company may, at its sole discretion, place the Employee on garden leave (see Section 6) in lieu of active duty.
2. **Compensation.** The Company shall pay the Employee an annual base salary of the amount set out in Schedule A, payable in equal semi-monthly installments in arrears. The Employee shall also be eligible to participate in the Company's discretionary annual bonus plan, with a target annual bonus opportunity of up to thirty percent (30%) of base salary, payable in the first quarter of the following calendar year, subject to Board approval.
3. **Vacation and Leave.** The Employee shall be entitled to twenty (20) paid vacation days per calendar year, accruing pro rata, in addition to public holidays and the Company's standard sick leave, family leave, and other statutory leaves in accordance with applicable law.
4. **Termination for Cause.** The Company may terminate this Agreement for cause, including but not limited to: (a) material breach of this Agreement by the Employee, (b) gross misconduct, (c) conviction of a felony, or (d) sustained unsatisfactory performance. The Company shall give the Employee not less than thirty (30) days' prior written notice of any termination under this Section, specifying the grounds for the termination in reasonable detail, except in cases of summary dismissal for gross misconduct.
5. **Non-Compete.** For a period of twelve (12) months following the termination of the Employee's employment, the Employee shall not, directly or indirectly, engage in any business that competes with the Company's business in the United States. The parties acknowledge that, notwithstanding the foregoing, this Section 5 shall be enforceable against the Employee only to the extent permitted by California law (including Business and Professions Code section 16600 and *Edwards v. Arthur Andersen LLP*). To the extent this Section 5 is unenforceable in California, it shall be enforced in any other jurisdiction in which the Employee resides or works.
6. **Garden Leave.** For a period of up to six (6) months following notice of termination (whether by the Company or the Employee), the Company may, at its sole discretion, place the Employee on garden leave, during which the Employee shall remain an employee of the Company, shall not be required to perform active duties, shall continue to receive base salary and benefits, and shall remain bound by the non-solicitation, non-compete, and confidentiality obligations of this Agreement.
7. **Non-Solicitation.** For a period of twelve (12) months following the termination of the Employee's employment, the Employee shall not, directly or indirectly, solicit any employee, contractor, customer, or client of the Company with whom the Employee had material contact during the twelve (12) months preceding termination, for the purpose of inducing them to terminate or modify their relationship with the Company.

8. Confidentiality; Survival. The Employee shall maintain the confidentiality of all Confidential Information of the Company both during and after the term of employment, for a period of three (3) years following termination. With respect to information that constitutes a trade secret under applicable law, the confidentiality obligation shall survive for so long as such information remains a trade secret.